Monday, 11 November 2002, at 10.30 a.m.[4] In view of the anxiety expressed by the petitioners about the safety of Qays, the court asked the Union of India and others to ensure that Qays was brought to the court in good condition.

That Monday, when Qays was brought to the court, the petitioners and N.D. Pancholi were shocked to see his physical state. His spectacles and wristwatch were broken, his shirt was torn and there were scratches all over his forearms. He told the court that the previous evening (i.e., Sunday evening) four policemen had come to the detention centre to take him away. The policemen had told him that they had come to take him to court. Aware that this was not possible on a Sunday evening, Qays had resisted going with them. In this physical resistance his spectacles and wristwatch had been smashed, his shirt torn, and he had received scratches all over his body. He stated that he could finally prevent the policemen from physically dragging him out only when he shouted for help and other inmates of the detention centre came to his rescue. The police flatly denied this, but the physical condition of Qays left no doubt in the minds of all those present in the courtroom. The Hon'ble judges were visibly angry and they reprimanded the Union of India and others, stating that they had given special instructions for Qays's physical well-being and that their instructions had not been obeyed. They were so disturbed by this incident that they asked the Union of India and the Delhi Police to appear in the forenoon. Ms Mukta, Public Prosecutor for the Delhi Government, pleaded with the judges that the Additional Solicitor-General, who was to appear for the Union of India, could only come in the afternoon, but in what was a clear reflection of the judges' anger at Qays's condition, he was ordered to appear no later than noon.

The Additional Solicitor-General of India, when he appeared before the judges, argued that Qays was to be deported on grounds that could not be revealed publicly, that there were 'confidential' reports and documents that warranted his immediate departure. He mentioned Qays's connection with S.A.R. Geelani and stated that Qays had been taken and questioned by CID and the Special Cell of the Delhi Police several times in connection with the attack on Parliament. He went on to state that Qays was to be deported for reasons of security. On this being contested by Pancholi, the judges asked for and examined the home ministry's files with the confidential reports. Their observations about the contents of the files are very significant. They commented that although Qays had been taken and questioned by CID and the special cell several times in connection with the Parliament attack case,